

Re: [REDACTED] Public Information Act request to Colorado County dated January 29, 2026 regarding [REDACTED]

From: [REDACTED]
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Date: February 14, 2026 02:55 UTC

VIA ELECTRONIC SUBMISSION

February 14, 2026

Office of the Attorney General of Texas
Open Records Division
P.O. Box 12548
Austin, Texas 78711-2548

RE:Requestor [REDACTED]'s Comments in Response to Colorado County's
Request for a Decision Regarding TPIA Request of February 10, 2026
Colorado County CMRRR: 9589 0710 5270 0492 4796 88

Dear General Paxton:

This brief is submitted by requestor Harold "Wayne" [REDACTED] pursuant to Texas Government Code § 552.305, providing the requestor's arguments as to why public information being withheld by Colorado County (the "County") must be released. The records at issue are essential to ensuring transparency and accountability following a serious use-of-force incident at the Colorado County Jail on January 19, 2026, which resulted in a Traumatic Brain Injury (TBI) to inmate [REDACTED].

The County's blanket assertion of five separate exceptions to the Public Information Act (the "Act") is a transparent attempt to conceal records that likely document official misconduct, dereliction of duty, and the use of excessive force against a person in its custody. The Act establishes a clear presumption in favor of public access. This presumption cannot be overcome by the County's broad, speculative, and self-serving claims. For the reasons set forth below, the Attorney General should order the immediate release of the requested records.

I. Rebuttal of Section 552.108: The Law Enforcement Exception Cannot Be Used to Hide Evidence of a Crime Committed by Law Enforcement from the Victim

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The County's primary argument for withholding these records rests on the law enforcement exception in Section 552.108. While an investigation into the January 19 incident is underway, the County misapplies this exception. Section 552.108 is intended to protect the integrity of an investigation from outside interference that could compromise its conclusion. It was never intended to be used as a shield to hide evidence from the victim of an alleged crime, particularly when the alleged perpetrators are the law enforcement officers themselves.

To allow the County to withhold evidence from Mrs. [REDACTED], the victim of a severe assault, under the guise of "protecting" the investigation into that same assault, is an absurd and unjust inversion of the Act's purpose. The public interest is not served by allowing a governmental body to unilaterally control the narrative by concealing the fundamental facts of an incident from the person who was injured.

The nature of the specific records requested demonstrates the overbreadth of the County's assertion:

Radio/Dispatch Audio Recordings: This request seeks raw, factual data captured in real-time. These recordings are not the work product of an investigator; they are a contemporaneous record of the events leading up to the use of force. Releasing the audio is critical to verifying whether the official pretext for the use of force—an alleged "medication refusal"—was legitimate or fabricated. This data does not contain sensitive investigative techniques or confidential informant details and its release would not interfere with the investigation.

Medication Records (MAR/Refusal Forms): These are routine administrative and medical records created in the ordinary course of jail operations, not for a law enforcement purpose. Whether a medication was administered or refused is a simple, objective fact. These records predate any formal investigation and are essential to understanding the incident's catalyst. They are not investigative records and cannot be withheld under § 552.108.

Jail Policies (Med-Pass Protocols): The County's attempt to withhold general policies and procedures is baseless. The Act makes clear that a governmental body's written policies are public information. *See City of Garland v. Dallas Morning News*, 22 S.W.3d 351, 364 (Tex. 2000). A policy explaining how medications are to be distributed or refused is a quintessential public record and cannot be withheld under § 552.108 or any other exception.

II. Rebuttal of Section 552.103: The Litigation Exception Does Not Protect Core Factual Records

While the requestor anticipates litigation, the County's invocation of Section 552.103 is overly broad. This exception is not a blanket prohibition on the release of all information related to a potential lawsuit. Its purpose is to protect an attorney's litigation strategy and work product, not to hide the underlying facts of an incident from the public and the opposing party.

McKnight Matter – Correspondence

The requested audio recordings, medication administration records, and jail protocols are core factual documents created in the ordinary course of business. They were not created in anticipation of litigation. Withholding these fundamental facts serves only to obstruct the requestor's ability to understand what happened and to pursue legal remedies. The OAG has repeatedly held that § 552.103 does not protect basic factual information, such as that contained in an offense report, that provides a general account of an incident. The records sought here are analogous.

III. Rebuttal of Sections 552.101 and 552.1175: The Identity of Public Officials Acting in Their Official Capacity is Not Confidential

The County may argue that the identities of the jailers involved are confidential under §§ 552.101 and 552.1175. The requestor does not object to the redaction of purely personal information, such as home addresses, personal phone numbers, social security numbers, or information about family members, as contemplated by the Act.

However, the names of public employees, and the actions they take in their official capacity, are not confidential. The identity of Lt. Holly Smith is already known and is a matter of significant public concern. Case law confirms that the identity of a police officer involved in an on-duty incident is public information. *See City of San Antonio v. San Antonio Express-News*, 47 S.W.3d 556, 564 (Tex. App.—San Antonio 2000, pet. denied). The public has an undeniable right to know which public servants were involved in a use-of-force incident that resulted in a citizen's injury.

IV. Rebuttal of Section 552.152: The Officer Safety Exception is Wholly Inapplicable and Speculative

The County's assertion of Section 552.152, relating to an officer's personal safety, is a boilerplate claim without a shred of supporting evidence. To invoke this exception, a governmental body must demonstrate that the release of the information would create a specific, tangible threat of harm. The County has offered no explanation as to how the release of historical audio recordings, medication logs, or jail policies from a past event could possibly endanger the safety of any employee. This is a speculative and meritless assertion designed only to obstruct access.

CONCLUSION

The public's interest in governmental transparency and accountability is at its apex when the government uses force against a person in its custody. Colorado County's attempt to use the Act as a tool to conceal the facts surrounding the serious injury of [REDACTED] is contrary to the law and public policy.

We respectfully urge the Attorney General to uphold the presumption of openness and rule that the requested records must be released.

Sincerely,

McKnight Matter – Correspondence

/s/ Wayne McKnight -

Harold "Wayne" [REDACTED]
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On Fri, Feb 13, 2026 at 5:22 PM Julia McVey <j.mcvay@allison-bass.com> wrote:

Please let me know if you have any issues opening the attachment. Thank you,

Julia McVey

Paralegal

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